



File No.: EXP202303736

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 3, 2023, a complaint was filed with this Agency by Ms. A.A.A. (hereinafter, the complainant) against ORANGE ESPAGNE, S.A.U. (hereinafter, the respondent) for not having duly attended to her right of erasure.

The complainant states that, after requesting the erasure of her phone number from the respondent due to receiving calls directed to a third party, she received a response on December 14, 2022, confirming the erasure. She points out that she continues to receive calls from the respondent after the response from Orange.

Along with her complaint, she provides a screenshot of received calls, indicating that these are calls from the respondent.

SECOND: The respondent indicated in its response to the transfer of the complaint made by this Agency that

“The right of erasure has already been processed and effectively attended to in file EXP202211908 followed before the AEPD at the end of 2022, with the same cause and the same parties. In this regard, it is worth mentioning that in the aforementioned file, the complainant stated that she was receiving recovery calls for a debt associated with a third party, requesting the erasure of her phone number.

Furthermore, in the written allegations submitted by this party, it was first stated that this company was aware of her request for the right of erasure on June 15, 2022, and that it was attended to on June 27, 2022. Second, it was established that the reason for the calls she received was that her phone number was listed as a contact in the file of a Jazztel brand customer; hence, despite having requested erasure and opposition and having been correctly applied under the Orange brand, she continued to receive calls directed to that third party.

However, as soon as this circumstance was known, the corresponding Department proceeded to immediately and definitively unlink the number from the file of the other cited customer, thus ceasing the calls.”

The respondent indicates that, upon becoming aware of the new complaint filed with the Spanish Agency for Data Protection, it has carried out the relevant checks and

“(…) i) This company does not have any personal data of the complainant stored in its files, as they have already been effectively erased, as confirmed to her, as well as her requested right of opposition, which was applied on October 14, 2022. This is stated in the response sent by this company to the complainant on October 19, 2022, in which it was expressly confirmed that ‘we do not have any of your personal data stored in our files, and that your lines have been included in internal advertising exclusion lists since October 14, 2022.’

Document No. four is provided, the aforementioned email of October 19, 2022, informing her that no personal data of hers is stored in internal files, and that her lines have been included in internal opposition lists since October 14, 2022.

ii) The complainant's line (**PHONE.1) has been registered in this company's internal opposition database since October 14, 2022, as previously indicated; as well as in the Robinson List managed by the Spanish Association of Digital Economy (ADIGITAL) since January 14, 2014.

iii) From the Collections Department of this company, as a result of the complaint followed in EXP202211908, the incorrect contact number was immediately and definitively removed as soon as the facts of her first complaint were known. However, after receiving the present complaint, it has been reconfirmed with the aforementioned Department that her contact number was removed from the associated file, as well as from all systems effectively. Therefore, it has been concluded that the unlinking of the incorrect contact number was effectively carried out, and that all agencies were notified

on October 24, 2022, for verification and removal. It was also reflected in the database record for deletion, with the deleted number recorded in this company's databases.

iv) Finally, in support of the above, it has been established that the reported calling line, ***PHONE.2, although it falls within the numbering ranges assigned to Orange, has been deactivated since 2018, so everything indicates that it was previously a line of an Orange customer, but since the reported calls were made in February 2023 and for all the reasons reflected throughout this document, it is reiterated that the calls reported are not the responsibility of this company."

In light of the above, this Agency, in its resolution dated May 9, 2023, considered that the right had been attended to.

THIRD: Dissatisfied with the resolution, the complainant filed a motion for reconsideration arguing that, despite the respondent's statements that...

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your personal data has been deleted, supposedly, your registered telephone line has been in the internal database of opposers since October 14, 2022, and in the Robinson List of Adigital since January 14, 2014, you continue to receive calls, and to demonstrate this, you provide a screenshot showing the following calling lines: ***PHONE.3 and ***PHONE.4.

The corresponding Recurso de Reposición procedure was initiated, in which the claimed party was given a hearing, and on October 24, 2023, the Director of this Agency deemed it appropriate because new facts were presented that prove that the claimed party has not attended to the requested right. The claimed party alleged that "(...) Notwithstanding the above, as previously stated and taking into account the new statements made by the claimant in the recurso de reposición, given that this time Ms. A.A.A. provides new originating numbers of those debt recovery calls that she is claiming again, which had not been provided in previous claims (the lines ***PHONE.3 and ***PHONE.4), this company has once again conducted the relevant checks and has concluded that the numbers provided indeed correspond to one of our external recovery agencies, an entity that has been entrusted with the debt recovery service, but that the claimant's number is no longer associated with any debt in Orange and therefore it has been confirmed that said Agency does not have the numbers provided by the claimant in its management database.

In addition to all the above, this company wishes to reiterate that the requests for the exercise of the right of opposition and deletion filed by the claimant were correctly attended to, and that all the claimed numbers are also included in the internal lists of opposers and therefore no calls of any other type have been made to the mentioned numbers."

FOURTH: As a consequence of the acceptance of the aforementioned Recurso de Reposición, the present Rights Procedure was opened, transferring the documentation to the claimed party, so that within ten working days it could present the allegations it deemed appropriate.

The claimed party stated, in summary, that "(...) As previously stated, this company reiterates the allegations made in the information requests issued within the framework of the reference file, mainly in the allegations presented during the Hearing Procedure to the Interested Party on October 2, 2023. In that document, this party emphasizes and reiterates that the claimant's request for deletion was correctly attended to and that, despite the fact that the lines ***PHONE.3 and ***PHONE.4 correspond to one of our external recovery agencies, as an entity entrusted with the debt recovery service, the number of the Claimant ***PHONE.2 is not communicated by this party nor is it provided by Orange in any database, which is why the calls that she is receiving from those numbers do not...

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are being carried out on behalf of this company, and this is because there is currently no debt associated with the claimant's number."

FIFTH: After examining the document submitted by the responding party, it is transferred to the claimant, so that, within a period of ten working days, they may formulate the allegations they deem appropriate, indicating, in summary, and as it pertains to the present procedure, that "(...) my personal number, and I have communicated this, is: ***PHONE.1, therefore, the phone they mention, I do not recognize."

SIXTH: After granting a hearing to the responding party, it states, in summary, and as it pertains to the present procedure, that

"2. However, regarding the allegations presented in compliance with the favorable resolution of the appeal for reconsideration dated November 8, 2023, this company has been able to verify that there was an error in the recording of the claimant's number, that is, this company recorded the claimant's number as line ***PHONE.2, instead of line ***PHONE.1. The error occurred when recording in the document the calling line provided by Ms. A.A.A. in her claim of March 27, 2023.

3. Now, through this document, this company wishes to inform this Agency and Ms. A.A.A. that the verifications carried out regarding the number were correct, that is, at all times the receiving number was consulted, that is, line ***PHONE.1, confirming that no calls of any kind were being made by Orange, nor by any of the External Collection Agencies on behalf of Orange, to the claimant's line."

SEVENTH: The claimant provides a screenshot showing a new call received on December 19, 2023, from the number ***PHONE.5.

EIGHTH: The responding party insists that "(...) the appropriate verifications have been made and it has been confirmed that no calls are being made on behalf of this company, and there is currently no debt associated with the claimant's number.

3. Furthermore, regarding the claimant's line, ***PHONE.1, it can be confirmed that their right to erasure has already been attended to and it does not appear in any database under the responsibility of Orange, thus confirming again that no calls of any kind are being made by Orange, nor by any of the External Collection Agencies on behalf of and for Orange."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

The opening of this procedure occurs due to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the

rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an agreement of admission for processing, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission for processing was notified to the claimant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or

replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), in so far as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing; or
- e) for the establishment, exercise or defense of legal claims."

V

Conclusion

During the processing of this procedure, from the examination of the documentation provided, it has been established that the complainant requested the erasure of their personal data from the respondent, and that the latter responded indicating that it has proceeded to erase those data.

However, the respondent insists that they continue to receive phone calls from a debt collection entity acting on behalf of the respondent, claiming a debt from a third party, providing screenshots where those calls are recorded.

Therefore, it cannot be considered that the personal data of the complainant have been duly erased, as some of them, at least the phone number, continue to be used, associated with a third party, by an entity acting on behalf of the respondent.

Consequently, it is appropriate to uphold this rights complaint.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ESTIMATE the claim made by Ms. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge ORANGE ESPAGNE, S.A.U. with NIF A82009812, to send to the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to ORANGE ESPAGNE, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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